SUPREME COURT OF LOUISIANA

DOCKET NO. 2020-C-685

STATE OF LOUISIANA AND THE
VERMILION PARISH SCHOOL BOARD,
Plaintiffs-Respondents

Versus

LOUISIANA LAND AND EXPLORATION
COMPANY, ET AL.,
Defendants-Petitioners

On Writ of Certiorari from the May 6, 2020 Decision
of the Third Circuit Court of Appeal, Docket No. CA 19-248,
John D. Saunders, Elizabeth A. Pickett, and Van H. Kyzar, Judges
A CIVIL PROCEEDING

MOTION OF THE CHAMBER OF COMMERCE OF THE UNITED STATES OF AMERICA FOR LEAVE TO FILE BRIEF AS AMICUS CURIAE IN SUPPORT OF DEFENDANTS-PETITIONERS

Eric S. Parnes (Bar No. 32083)
MCDERMOTT WILL & EMERY LLP
500 North Capitol Street, NW
Washington, D.C. 20001
Telephone: (202) 756-8348
Facsimile: (202) 756-8087
Attorney for the Chamber of Commerce of the United States of America

NOW INTO COURT, through undersigned counsel, comes the Chamber of Commerce of the United States of America (the "Chamber"), which moves this Court for leave to file a brief as *amicus curiae*, pursuant to Rule VII, Section 12 of the Rules of the Supreme Court of Louisiana, in support of Defendants-Petitioners, as follows.

The Chamber is the world's largest business federation. It represents approximately 300,000 direct members and indirectly represents the interests of more than 3 million companies and professional organizations of every size, in every industry sector, and from every region of the country. An important function of the Chamber is to represent the interests of its members in matters before Congress, the Executive Branch, and the courts.

As part of this advocacy, the Chamber regularly files briefs as *amicus curiae* urging courts to adopt fair interpretations of laws that advance free enterprise and promote economic growth. The Chamber has participated as *amicus curiae* in cases that have the potential to impact the interpretation and enforcement of contracts, such as this case. *See, e.g.*, *USAA Tex. Lloyds Co. v. Menchaca*, 545 S.W.3d 479 (Tex. 2018); *ACE Secs. Corp. v. DB Structured Prods., Inc.*, 36 N.E.3d 623 (N.Y. 2015).

The Chamber has a substantial, legitimate interest in the principles of contract that courts apply to the freely negotiated contracts of the United States business community. The Third Circuit's decision threatens to undermine the predictability of contracts that is of central concern to businesses, because the decision relied on a statute passed decades after the parties entered into a contract to define the parties' obligations under that contract. Parties to a contract cannot anticipate being bound in their obligations to one another by a statutory standard that has not yet been established at the time of contracting. The rule adopted by the Third Circuit in the decision below would, if allowed to stand and spread throughout the State, introduce uncertainty and instability into the private obligations of the Chamber's many members operating in Louisiana.

The Chamber's brief focuses on narrow, but important issues of contract law that are implicated by the Third Circuit's decision. These issues, and their particular significance to the business community, could otherwise escape the Court's attention. Permitting the Chamber to participate as *amicus curiae* will assist this Court by addressing the far-reaching effects of the Third Circuit's opinion on the predictability of contracts in Louisiana.

The Chamber files its *amicus* brief herewith, conditioned upon this Court's grant of leave. By service of this motion and brief, the Chamber has served notice on all counsel of record.

WHEREFORE, the Chamber of Commerce of the United States of America respectfully requests leave of Court to file the attached brief as *amicus curiae*.

Dated: November 17, 2020

Respectfully submitted,

/s/ Eric S. Parnes
Eric S. Parnes (Bar No. 32083)
MCDERMOTT WILL & EMERY LLP
500 North Capitol Street, NW
Washington, D.C. 20001
Telephone: (202) 756-8348
Facsimile: (202) 756-8087

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the allegations in the foregoing motion are true and correct to the best of my knowledge; and that a copy of the above motion has been served upon the below-listed counsel via next day delivery service, this 17th day of November, 2020, as specified below:

Michael R. Phillips
Claire R. Juneau
Louis M. Grossman
Kean Miller LLP
First Bank and Trust Tower
909 Poydras St., Suite 3600
New Orleans, LA 70112
Attorneys for Defendants

Jerold Edward Knoll
The Knoll Law Firm, L.L.C.
233 S. Main Street
P.O. Box 426
Marksville, LA 71351
Attorney for Plaintiffs

L. Victor Gregoire
Kean Miller LLP
400 Convention Street, Suite 700
P.O. Box 3513
Baton Rouge, LA 70802
Attorney for Defendants

Justin T. Merritt
Vermilion Parish School Board
220 S. Jefferson Street
P.O. Box 520
Abbeville, LA 70510-0520
Attorney for Plaintiffs

William R. Coenen, III
Talbot, Carmouche & Marcello
17405 Perkins Road
Baton Rouge, LA 70810
Attorney for Plaintiffs

Robert E. Meadows
Carol M. Wood
Andrew M. Stakelum
King & Spalding, LLP
1100 Louisiana, Suite 4000
Houston, TX 77002
Attorneys for Defendants

Grady J. Abraham
5040 Ambassador Caffrey Pkwy., Suite 200
Lafayette, LA 70508
Attorney for Plaintiffs

Martin A. Stern
Sara Valentine
Alexandra Roselli Lamb
701 Poydras Street, Suite 4500
New Orleans, LA 70139
Attorneys for Defendants

/s/ Eric S. Parnes

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ORDER

Having considered the foregoing Motion of the Chamber of Commerce of the United States of America for Leave to File Brief as Amicus Curiae in Support of Defendants-Petitioners,

IT IS ORDERED that the Chamber of Commerce of the United States of America be and is hereby GRANTED leave to file the attached Brief as Amicus Curiae.

THUS DONE AND SIGNED, this ____ day of _____, 2020, in New Orleans, Louisiana.

_____
JUSTICE, LOUISIANA SUPREME COURT